

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
 FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:

Date Filed: July 2, 2014 MA# 86601

Basic Fee:	Annual Fee	Prorated Fee
Add'l Dispensing Room Fee:	\$	\$
Transfer Fee:	\$ <u>100.00</u>	
Total License Fee Collected	\$	\$
Publishing Fee Collect:	\$ <u>100.00</u>	

Required Attachments Received: Yes ☒

Advertising Dates(4): July 8, 15, 2014

Hearing Date: July 28, 2014

Local Licensing Number: 160

For the license term: upon issuance
 Month Day Year

Through: March 31, 2015
 Month Day Year

A copy must be immediately forwarded to:
 State of Wyoming Liquor Division
 6601 Campstool Rd.
 Cheyenne WY 82002-0110

Formerly Held by: GMRI, Inc

Applicant: Red Lobster Hospitality LLC

Trade Name (dba): Red Lobster #0639

Premise Address: 1923 Dell Range Boulevard
 Number & Street

Cheyenne WY 82009 Laramie
 City State Zip County

Mailing Address: PO Box 695016
 Number & Street or P.O. Box

Orlando FL 32869
 City State Zip

Business Telephone Number: (307) 778-2724

Fax Number: (407) 241-5504 (Corp.)

E-Mail Address: chunter@darden.com

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

FILING FOR ☐ NEW ☐ TRANSFER LOCATION ☒ TRANSFER OWNERSHIP FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____ FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ PARTNERSHIP ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE) ☒ RETAIL LIQUOR LICENSE ☒ on-premise only ☐ off-premise only ☐ combination on/off premise ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☐ WINERY ☐ BAR AND GRILL ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	To Assist the Liquor Division with scheduling inspections: DO YOU OPERATE? ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from _____ to _____ DAYS OF WEEK (e.g. Mon through Sat) <u>Monday through Sunday</u> HOURS OF OPERATION (e.g. 10a - 2a) <u>Sun-Thurs 11a.m. - 10p.m.; Fri-Sat 11a.m. - 11p.m.</u>
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1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If **Winery** or **Microbrewery**, also list manufacturing facility. W.S. 12-4-102(a)(i): (Please submit a drawing of dispensing room)

20 foot by 17 foot room in center of building (see attached diagram).

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:

Lot 4 and east portion of Lot 3, Blk 1, Meadowbrooke Park. Zoned: CB

2. Do you W.S. 12-4-103 (a) (iii):

(1) **OWN** the building in which sales room is located?

☐ YES (own)

(2) **LEASE** the building in which sales room is located?

☒ YES (lease)

(A) **DATE** lease expires July 31, 2039 located on page 8 paragraph 4 of lease document.

(B) Provision for **SALE** of alcoholic or malt beverages located on page 16 paragraph 14 of lease.

NOTE: Attach a true copy of the lease to application. Lease **MUST** contain provision for **SALE OF ALCOHOLIC or MALT BEVERAGES** and be valid **THROUGH** the **TERM OF THE LICENSE** W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:

5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO

If "YES", explain: _____

6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO

7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b): N/A

8. (a) Have you submitted a valid food service permit upon application?
W.S. 12-4-407(a) W.S. 12-4-413(a) ☐ YES ☐ NO
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c): N/A

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11: N/A

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license?
W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:

11. (a) Do you self distribute your products? ☐ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. **FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B) N/A

- (a) The name and address of the grand lodge or national organization is: _____
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. **VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A): N/A

- (a) The name and address of the National Veterans organization is: _____
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E): N/A

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D): N/A

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.

If the application is for a Club: State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	<i>DONOT LIST PO BOXES</i> Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
N/A				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	<i>DONOT LIST PO BOXES</i> Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
See Attached						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF Florida
)
 COUNTY OF Orange SS.

Before Me, Mary Diane Kierstein, (specify)
 (Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for

Orange County, State of Wyoming, personally appeared

Horace Greeley Dawson, III name he/she being first duly sworn
 (Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.



MARY DIANE KIERSTEIN
 MY COMMISSION # EE 222737
 EXPIRES: August 6, 2016
 Bonded Thru Budget Notary Services

1. [Signature]
 2. _____
 3. _____
 4. _____

My Commission expires: August 6, 2016

Witness my hand and official seal:

[Signature]
 (Notary Public or other officer authorized to administer oaths)

Title Notary Public

Dated: 6/24/2014

REQUIRED ATTACHMENTS:

- Attach any lease agreements W.S. 12-4-103 (a) (iii).
- If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (v).
- Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- Include a drawing of the dispensing room W.S. 12-5-201 (a).
- Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF Florida
(~~WYOMING~~)
COUNTY OF Orange SS.

Before Me, Mary Diane Kierstein, (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for
Orange County, State of Florida, personally appeared

Colleen M. Hunter name he/she being first duly sworn
(Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.

(Seal)

1. [Signature]
2. _____
3. _____
4. _____

My Commission expires: August 06, 2016

Witness my hand and official seal:

[Signature]
(Notary Public or other officer authorized to administer oaths)

Title Notary Public

Dated: 6/26/14



MARY DIANE KIERSTEIN
MY COMMISSION # EE 222737
EXPIRES: August 6, 2016
Bonded Thru Budget Notary Services

REQUIRED ATTACHMENTS:

- Attach any lease agreements W.S. 12-4-103 (a) (iii).
- If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (v).
- Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- Include a drawing of the dispensing room W.S. 12-5-201 (a).
- Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent		
Chief		
Acct		

Supplemental Response to Question 16(b) of License and/or Permit Application:

True and Correct Name	D.O.B.	Residence Address	Residence Phone Number	No. of Years in Corp.	% of Stock Held	Have You Been Convicted of a Felony Violation?	Have You Been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Red Lobster Management, LLC	N/A	1000 Darden Ctr. Dr. Orlando, FL 32837	(407) 245-4711	N/A	100% (Parent Co.)	N/A	N/A
Carl Bradford Richmond	9/4/58	10844 Emerald Chase Dr. Orlando, FL 32836	(407) 879-6387	10+	0%	No	No
Horace Greeley Dawson, III	10/23/54	808 Brightwater Cir. Maitland, FL 32751	(407) 245-4000	10+	0%	No	No
Colleen Marie Hunter	6/22/72	11762 Aurelio Ln. Orlando, FL 32837	(407) 810-9436	10+	0%	No	No
Joseph George Kern	12/21/61	112 Kennison Dr. Orlando, FL 32801	(407) 245-4711	10+	0%	No	No



Red Lobster ■ Olive Garden ■ LongHorn Steakhouse ■ The Capital Grille ■ Bahama Breeze ■ Seasons 52

*Colleen M. Hunter
Director of Licensing &
Assistant Secretary
Phone 407.245.4711
Fax 407.241.5504
chunter@darden.com*

July 1, 2014

City of Cheyenne
c/o Ms. Kristy Anderson
2101 O'Neil Avenue, Rm. 101
Cheyenne, WY 82001

*Re: Red Lobster #0639
1923 Dell Range Blvd.
Cheyenne, WY 82009
Retail Liquor License No. 60*

Dear Sirs:

This letter serves as GMRI, Inc.'s ("Licensee") notice that it wishes to transfer its retail liquor license ("License"), currently in service at 1923 Dell Range Boulevard, to Red Lobster Hospitality, LLC ("Red Lobster Hospitality"). Licensee is transferring its Red Lobster restaurant operations to Red Lobster Hospitality as part of the sale of all Red Lobster restaurants throughout the U.S. and Canada. To further this transfer, Red Lobster Hospitality is in the process of making application to transfer the License. Licensee respectfully requests that the Cheyenne City Council approve this transfer. Licensee acknowledges that it remains the License holder until such time as the application is finally approved by the City Council and that the proceeds from the sale of alcohol at this location must be realized by Licensee until that time.

If you need anything further from Licensee to process this transfer, or if you have any questions regarding this matter, please feel free to contact us at the number in your files.

Sincerely,

GMRI, Inc.

By: 
Colleen M. Hunter, Asst. Secretary

June 30, 2014

Mayor and Members of City Council
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

Dear Mayor and Members of City Council:

This letter serves as Red Lobster Hospitality LLC's ("Red Lobster Hospitality") introduction and request that Cheyenne's licensing authority approve the transfer of the retail liquor license of Red Lobster #0639 from GMRI, Inc. ("GMRI") to Red Lobster Hospitality.

As you may be aware, GMRI's parent company, Darden Restaurants, Inc. ("Darden") made the decision earlier this year to sell the entire Red Lobster restaurant chain to RL Acquisition, LLC – a subsidiary of Golden Gate Capital. A press release from Darden regarding this transaction is enclosed. The sale includes nearly 700 restaurants across the U.S. and Canada, including the Cheyenne location at 1923 Dell Range Boulevard. Red Lobster Hospitality will continue to operate the restaurant as a seafood casual dining concept. The transfer of this retail liquor license is, of course, a key aspect of the restaurant transfer.

We are confident that Red Lobster Hospitality will be successful in Cheyenne and look forward to a profitable partnership with the City for many years to come.

Very truly yours,

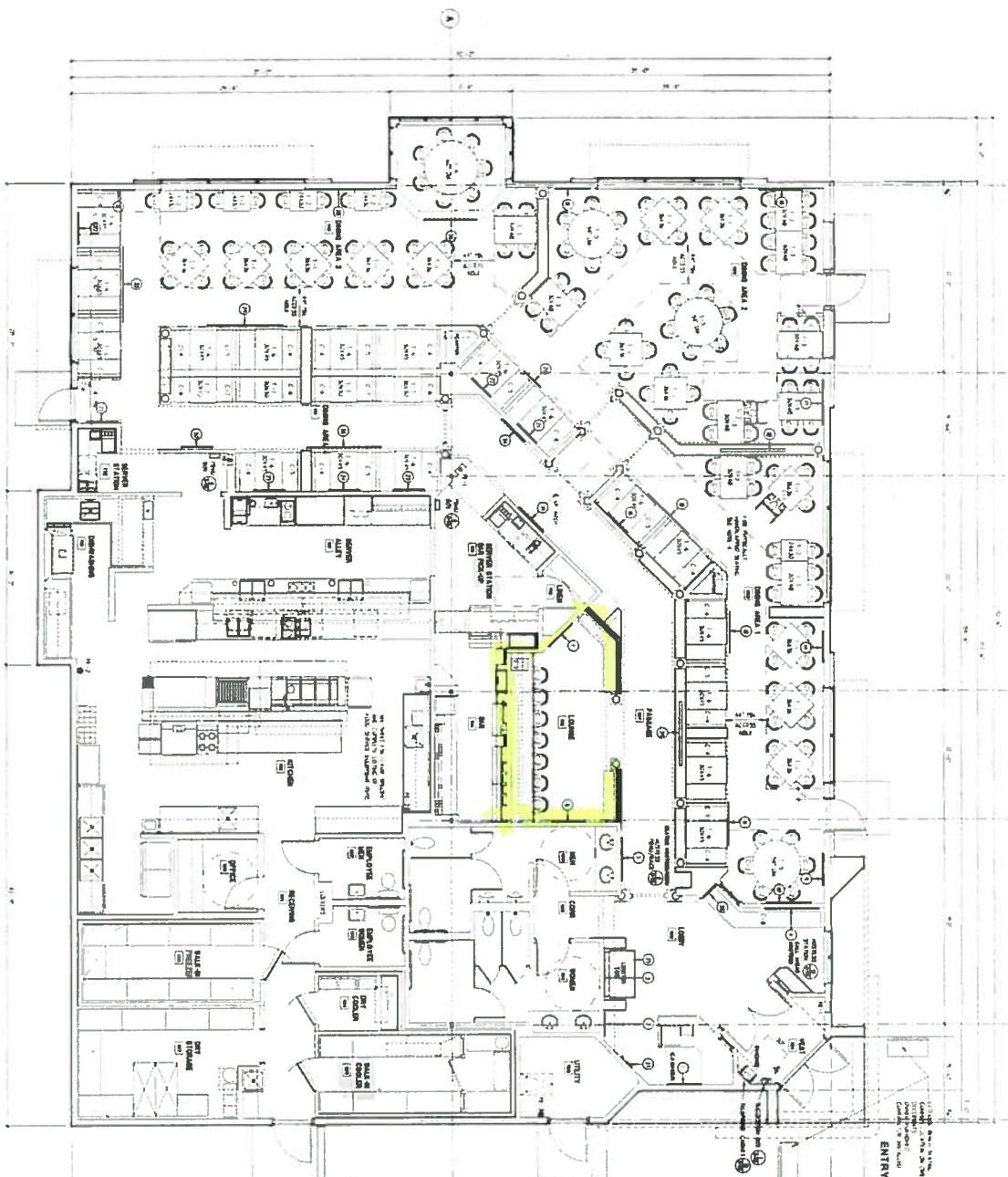


Brian C. Proffitt

Enclosure

A

ARTWORK SCHEDULE									
DATE	DESCRIPTION	BY	TIME	LOCATION	STATUS	REMARKS	DATE	DESCRIPTION	BY
1	ARTWORK SCHEDULE								
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ARTWORK SCHEDULE						
DATE	ARTIST'S NAME	ARTWORK TITLE	TYPE	LENGTH	PERIOD	
1	James A. McQuinn	-	1:05	10:00-11:00	10:00-11:00	
2	WILLIAM H. BAKER	-	1:05	11:00-12:00	11:00-12:00	
3	WILLIAM H. BAKER	-	1:05	12:00-13:00	12:00-13:00	
4	WILLIAM H. BAKER	-	1:05	13:00-14:00	13:00-14:00	
5	WILLIAM H. BAKER	-	1:05	14:00-15:00	14:00-15:00	
6	WILLIAM H. BAKER	-	1:05	15:00-16:00	15:00-16:00	
7	WILLIAM H. BAKER	-	1:05	16:00-17:00	16:00-17:00	
8	WILLIAM H. BAKER	-	1:05	17:00-18:00	17:00-18:00	
9	WILLIAM H. BAKER	-	1:05	18:00-19:00	18:00-19:00	
10	WILLIAM H. BAKER	-	1:05	19:00-20:00	19:00-20:00	
11	WILLIAM H. BAKER	-	1:05	20:00-21:00	20:00-21:00	
12	WILLIAM H. BAKER	-	1:05	21:00-22:00	21:00-22:00	
13	WILLIAM H. BAKER	-	1:05	22:00-23:00	22:00-23:00	
14	WILLIAM H. BAKER	-	1:05	23:00-24:00	23:00-24:00	
15	WILLIAM H. BAKER	-	1:05	24:00-25:00	24:00-25:00	
16	WILLIAM H. BAKER	-	1:05	25:00-26:00	25:00-26:00	
17	WILLIAM H. BAKER	-	1:05	26:00-27:00	26:00-27:00	
18	WILLIAM H. BAKER	-	1:05	27:00-28:00	27:00-28:00	
19	WILLIAM H. BAKER	-	1:05	28:00-29:00	28:00-29:00	
20	WILLIAM H. BAKER	-	1:05	29:00-30:00	29:00-30:00	
21	WILLIAM H. BAKER	-	1:05	30:00-31:00	30:00-31:00	
22	WILLIAM H. BAKER	-	1:05	31:00-32:00	31:00-32:00	
23	WILLIAM H. BAKER	-	1:05	32:00-33:00	32:00-33:00	
24	WILLIAM H. BAKER	-	1:05	33:00-34:00	33:00-34:00	
25	WILLIAM H. BAKER	-	1:05	34:00-35:00	34:00-35:00	
26	WILLIAM H. BAKER	-	1:05	35:00-36:00	35:00-36:00	
27	WILLIAM H. BAKER	-	1:05	36:00-37:00	36:00-37:00	
28	WILLIAM H. BAKER	-	1:05	37:00-38:00	37:00-38:00	
29	WILLIAM H. BAKER	-	1:05	38:00-39:00	38:00-39:00	
30	WILLIAM H. BAKER	-	1:05	39:00-40:00	39:00-40:00	
31	WILLIAM H. BAKER	-	1:05	40:00-41:00	40:00-41:00	
32	WILLIAM H. BAKER	-	1:05	41:00-42:00	41:00-42:00	
33	WILLIAM H. BAKER	-	1:05	42:00-43:00	42:00-43:00	
34	WILLIAM H. BAKER	-	1:05	43:00-44:00	43:00-44:00	
35	WILLIAM H. BAKER	-	1:05	44:00-45:00	44:00-45:00	
36	WILLIAM H. BAKER	-	1:05	45:00-46:00	45:00-46:00	
37	WILLIAM H. BAKER	-	1:05	46:00-47:00	46:00-47:00	
38	WILLIAM H. BAKER	-	1:05	47:00-48:00	47:00-48:00	
39	WILLIAM H. BAKER	-	1:05	48:00-49:00	48:00-49:00	
40	WILLIAM H. BAKER	-	1:05	49:00-50:00	49:00-50:00	

DATE		TIME	LOCATION	TOPICS	STAFF	ROOM
1	10/10/10	10:00 AM	Room 101	Introduction to the course	Dr. Smith	Room 101
2	10/17/10	10:00 AM	Room 101	Basic principles of chemistry	Dr. Smith	Room 101
3	10/24/10	10:00 AM	Room 101	Chemical reactions and stoichiometry	Dr. Smith	Room 101
4	10/31/10	10:00 AM	Room 101	Atomic structure and periodic table	Dr. Smith	Room 101
5	11/07/10	10:00 AM	Room 101	Molecular structure and bonding	Dr. Smith	Room 101
6	11/14/10	10:00 AM	Room 101	Thermodynamics and equilibrium	Dr. Smith	Room 101
7	11/21/10	10:00 AM	Room 101	Kinetics and reaction mechanisms	Dr. Smith	Room 101
8	11/28/10	10:00 AM	Room 101	Electrochemistry and redox reactions	Dr. Smith	Room 101
9	12/05/10	10:00 AM	Room 101	Chemical equilibrium and Le Chatelier's principle	Dr. Smith	Room 101
10	12/12/10	10:00 AM	Room 101	Final exam	Dr. Smith	Room 101

CHAIR AND BOOTH RENT SCHEDULE				
TABLE #	TABLE SIZE	CHAIR AND BOOTH RENT	TABLE PRICE	TABLE PRICE
1	6' x 6'	STANDARD 300	100	100
2	6' x 6'	STANDARD 300	100	100
3	6' x 6'	STANDARD 300	100	100
4	6' x 6'	STANDARD 300	100	100
5	6' x 6'	STANDARD 300	100	100
6	6' x 6'	STANDARD 300	100	100
7	6' x 6'	STANDARD 300	100	100
8	6' x 6'	STANDARD 300	100	100
9	6' x 6'	STANDARD 300	100	100
10	6' x 6'	STANDARD 300	100	100
11	6' x 6'	STANDARD 300	100	100
12	6' x 6'	STANDARD 300	100	100
13	6' x 6'	STANDARD 300	100	100
14	6' x 6'	STANDARD 300	100	100
15	6' x 6'	STANDARD 300	100	100
16	6' x 6'	STANDARD 300	100	100
17	6' x 6'	STANDARD 300	100	100
18	6' x 6'	STANDARD 300	100	100
19	6' x 6'	STANDARD 300	100	100
20	6' x 6'	STANDARD 300	100	100
21	6' x 6'	STANDARD 300	100	100
22	6' x 6'	STANDARD 300	100	100
23	6' x 6'	STANDARD 300	100	100
24	6' x 6'	STANDARD 300	100	100
25	6' x 6'	STANDARD 300	100	100
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53	6' x 6'	STANDARD 300	100	100
54	6' x 6'	STANDARD 300	100	100
55	6' x 6'	STANDARD 300	100	100
56	6' x 6'	STANDARD 300	100	100
57	6' x 6'	STANDARD 300	100	100
58	6' x 6'	STANDARD 300	100	100
59	6' x 6'	STANDARD 300	100	100
60	6' x 6'	STANDARD 300	100	100
61	6' x 6'	STANDARD 300	100	100
62	6' x 6'	STANDARD 300	100	100
63	6' x 6'	STANDARD 300	100	100
64	6' x 6'	STANDARD 300	100	100
65	6' x 6'	STANDARD 300	100	100
66	6' x 6'	STANDARD 300	100	100
67	6' x 6'	STANDARD 300	100	100
68	6' x 6'	STANDARD 300	100	100
69	6' x 6'	STANDARD 300	100	100
70	6' x 6'	STANDARD 300	100	100
71	6' x 6'	STANDARD 300	100	100
72	6' x 6'	STANDARD 300		

[illegible][illegible]

CERTIFICATE OF LIEN SEARCH
CLERK OF LARAMIE COUNTY

A search of the records of this office indicates the listing below is a record of the presently effective Financing Statements and Statements of Assignment which we have found on record for **GMRI, INC.** THE UNDERSIGNED, FOR HIMSELF AND FOR LARAMIE COUNTY, DISCLAIMS ANY WARRANTIES, EXPRESS OR IMPLIED, THAT THE FOREGOING IS ABSOLUTELY EXHAUSTIVE AND CORRECT AND NEITHER SHALL BE LIABLE IN ANY WAY WHATSOEVER FOR ANY LOSS OR DAMAGE OF ANY KIND AS A RESULT OF ANY INACCURACIES OR OMISSIONS WITH REGARD TO THIS ABSTRACT. THE SOLE PURPOSE OF THIS ABSTRACT IS TO ACCOMMODATE PERSONS WHO ARE UNABLE OR UNWILLING TO PERSONALLY EXAMINE THE AFORESAID RECORDS.

Note: CM= Chattel Mortgage FS= Financing Statement SA= Security Agreement TL= Tax Lien

TYPE	NUMBER	DATE FILED	TIME	MORTGAGEE	AMOUNT	DESCRIPTION
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NO UCC LIENS WERE FOUND

NO FEDERAL NOR STATE TAX LIENS WERE FOUND

SEAL

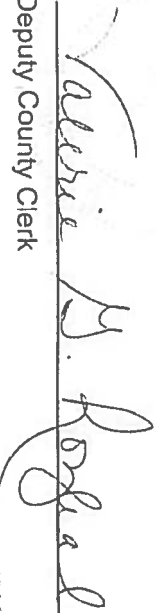

Laramie County Clerk

Requested by: FGMC - BRIAN C. PROFFITT

Date: 6/26/2014

Years Checked: 01/01/2008 TO DATE

By:


Deputy County Clerk

DEPUTY COUNTY CLERK
TERM EXPIRES JAN. 3, 2015

010-004 (R11/11)

E



Wyoming Secretary of State
State Capitol Building, Room 110
200 West 24th Street
Cheyenne, WY 82002-0020
Ph. 307.777.7311
Fax 307.777.5339
Email: Business@wyo.gov

Max Maxfield, WY Secretary of State
FILED: 06/17/2014 12:43 PM
Original ID: 2014-000661756
Amendment ID: 2014-001629103

Foreign Limited Liability Company Application for Amended Certificate of Authority

Pursuant to W.S. 17-16-1504 of the Wyoming Business Corporation Act, the undersigned limited liability company hereby applies for an Amended Certificate of Authority to transact business in the state of Wyoming, and for that purpose submits the following statement:

1. A Certificate of Authority was issued to the company by the Wyoming Secretary of State on **03/26/2014**,
(Date - mm/dd/yyyy)
authorizing it to transact business in Wyoming and is presently registered under the name of:

Red Lobster Hospitality LLC

2. Name of the limited liability company has been changed to:

3. State or country of organization has been changed to: **Delaware**

4. Organized under the laws of: **Florida**
(State or country of organization)

5. Date of organization: **03/14/2014**
(Date - mm/dd/yyyy)

6. Period of duration: **Perpetual**

7. Principal office address:

1000 Darden Center Drive Orlando FL 32837

8. Mailing address of the limited liability company:

1000 Darden Center Drive Orlando FL 32837

9. Name and physical address of its registered agent:

(The registered agent may be an individual resident in Wyoming, a domestic corporation, or foreign corporation authorized to transact business in Wyoming, having a business office identical with such registered office. The registered agent must have a physical address in Wyoming. A Post Office Box or Drop Box is not acceptable. If the registered office includes a suite number, it must be included in the registered office address.)

**Corporate Creations Network Inc.
5830 E. 2nd Street
Casper, WY 82609**



10. If the company is managed by a manager or managers, the names and addresses of such managers:

C. Bradford Richmond 1000 Darden Center Drive Orlando FL 32837
Horace G. Dawson III 1000 Darden Center Drive Orlando FL 32837

If the management of the company is reserved to the members, the names and addresses of its members:

11. An estimate, expressed in dollars, of the value of the property of the limited liability company located and employed in the state of Wyoming: \$ 0

Date: 06/12/2014

(mm/dd/yyyy)

Signature:



(May be executed by a member, manager, or other authorized individual as set forth in the operating agreement.)

Print Name: Tim Pratts

Title: Special Manager

Contact Person: Tim Pratts, Corporate Creations Email: Timothy@corpcreations.com

Daytime Phone Number: (561) 694-8107

Checklist

- ☐ **Filing Fee: \$50.00** Make check or money order payable to Wyoming Secretary of State.
 - ☐ The completed application must be accompanied by an **original CERTIFICATE OF EVIDENCE of the Amendment**, or a document of similar import, dated not more than sixty (60) days prior to filing in Wyoming. If the amendment involves a name change, the certificate must state the previous name and the new name along with the date of the amendment.
 - ☐ Please submit one **originally signed** document and one exact photocopy of the filing.
 - ☐ For consistency the Secretary of State's Office will only keep one version of the agent's name on file.
- Please review form prior to submitting to the Secretary of State to ensure all areas have been completed to avoid a delay in the processing of your documents.**

MEMORANDUM

TO: State Alcohol Beverage Regulatory Agency Administrators

FROM:

DATE: June __, 2014

SUBJECT: Change of Ownership and Source of Funds for Acquisition of *Red Lobster*® Restaurants and Related Liquor License Applications

The purpose of this memorandum is to alert you to the change in ownership of a restaurant chain that operates locations across the United States, including one or more restaurants that are licensed to sell alcohol beverages in your jurisdiction. We are providing you with this overview of the transaction to facilitate our applications to transfer the existing (or, as applicable, obtain new) restaurant liquor licenses.

Darden Restaurants, Inc. ("Darden")¹ is a public company traded on the New York Stock Exchange. Darden, either directly or through various subsidiaries, currently owns, operates, and/or franchises to third parties numerous themed restaurant chains, including the *Red Lobster*® chain of restaurants. As announced in its press release of May 16, 2014 (a copy of which is attached for your convenience), Darden has entered into a definitive Asset and Stock Purchase Agreement (the "Agreement") to sell its *Red Lobster*® chain of restaurants to RL Acquisition, LLC, an entity affiliated with Golden Gate Capital ("GGC").² Under the terms of the Agreement, at the closing of the acquisition, RL Acquisition, LLC will acquire 100% of the outstanding equity interests of Red Lobster Holdings, LLC. At the closing of the acquisition:

- (1) Red Lobster Holdings, LLC will own 100% of the outstanding equity interests of Red Lobster Intermediate Holdings, LLC;
- (2) Red Lobster Intermediate Holdings, LLC will own 100% of the outstanding equity interests of Red Lobster Management, LLC; and
- (3) Red Lobster Management, LLC will own 100% of the outstanding equity interests of each of Red Lobster Hospitality, LLC and Red Lobster Restaurants, LLC.

Red Lobster Hospitality, LLC (or in the cases of Kansas, Maryland, and Texas, a local special-purpose affiliate of this entity³) will be the entity that conducts the operations of the *Red Lobster*® restaurant(s)

¹ Darden Restaurants, Inc. is the world's largest full service restaurant company and owns and operates more than 2,100 restaurants, employing more than 200,000 people. Darden or one of its affiliates already is a licensee in your jurisdiction. Further information regarding Darden is available on its website at www.darden.com.

² Golden Gate Capital is a private equity investment firm with over \$12 billion of capital under its management. Further information regarding GGC is available on its web site at [www. goldengatecap.com/](http://www.goldengatecap.com/)

³ In the cases of Kansas, Maryland, and Texas, a local special-purpose affiliate of the aforementioned entity will hold the license(s) in compliance with local requirements.

located in your state. These **Red Lobster®** restaurants are currently licensed for the on-premise sale of alcoholic beverages in conjunction with their operations. Accordingly, as the entity conducting the restaurant operations in your state, Red Lobster Hospitality, LLC (or in the cases of Kansas, Maryland, and Texas, a local special-purpose affiliate of this entity⁴) will be the applicant seeking liquor licensure for the purchased **Red Lobster®** restaurants in your state. For your convenience, we have enclosed a chart which details the above-described ownership structure as of the closing of the acquisition transaction.

As mentioned, the parties have executed a definitive Agreement to effectuate the purchase of the **Red Lobster®** restaurants from Darden. **The closing of this transaction is currently scheduled to take place on or around July 28, 2014.**

As detailed in the Agreement, the purchase price to be paid by RL Acquisition, LLC for the **Red Lobster®** restaurant chain is \$2,113,400,000. The sources of RL Acquisition, LLC's financing of the purchase of the **Red Lobster®** restaurants can be summarized as follows:

- RL Acquisition, LLC has entered into a definitive agreement with affiliates of American Realty Capital Properties, Inc. (collectively, the "SLB Purchaser") for a more than \$1.5 billion sale lease-back of over 500 **Red Lobster®** restaurants. At the direction of RL Acquisition, LLC, at the closing of the transaction, Darden will directly convey title to these **Red Lobster®** restaurants to the SLB Purchaser. The SLB Purchaser is a sale/leaseback specialist that focuses on the acquisition of corporate real estate. The SLB Purchaser will lease these properties back to Red Lobster Hospitality, LLC and Red Lobster Restaurants, LLC. The SLB Purchaser is not related to GGC, RL Acquisition, LLC or Darden.
- In addition, RL Acquisition, LLC is currently in the process of arranging third party debt financing for a portion of the purchase price. It is contemplated that such third party debt financing will be arranged prior to the closing of the acquisition transaction. A portion of the purchase price will also be financed by an equity contribution to RL Acquisition, LLC from GGC.
- The aforementioned funds will be used by RL Acquisition, LLC to pay the purchase price under the Agreement for the **Red Lobster®** restaurants and to pay the transaction-related fees and expenses for which RL Acquisition, LLC is responsible under the terms of the Agreement.

As noted above, the closing date for the transaction is **July 28, 2014**. We have already filed license applications in several jurisdictions and expect to file all remaining license applications soon. We would be happy to answer any questions you have regarding the foregoing so as to ensure a smooth and successful process with your agency. Thank you in advance for your cooperation.

⁴ In the cases of Kansas, Maryland, and Texas, a local special-purpose affiliate of the aforementioned entity will hold the license(s) in compliance with local requirements.



News Release Details

Darden Announces Sale of Red Lobster to Golden Gate Capital for \$2.1 Billion

May 16, 2014

Proceeds to Support Approximate \$1.0 Billion Debt Reduction and New Share Repurchase Program of Up to \$700 Million

Company to Maintain Current Dividend

Updates Operational Support and Cost Savings Initiatives

ORLANDO, Fla., May 16, 2014 /PRNewswire/ -- Darden Restaurants, Inc. (NYSE: DRI) today announced that it has entered into a definitive agreement to sell its Red Lobster business and certain other related assets and assumed liabilities to Golden Gate Capital for \$2.1 billion in cash.

Darden expects to receive net cash proceeds, after tax and transaction costs, of approximately \$1.6 billion, of which approximately \$1.0 billion will be used to retire outstanding debt. The remaining net proceeds of approximately \$500 million to \$600 million will be deployed for a new share repurchase program of up to \$700 million in fiscal 2015. In addition to strengthening the Company's credit metrics, with the lower debt levels and reduced outstanding share count, Darden expects to maintain its current quarterly dividend of \$0.55 per share, or \$2.20 annually.

The agreement announced today is the culmination of a robust process to maximize the value potential of a sale or spin-off of Red Lobster and its real estate assets. As part of this process, the Company and its advisors directly contacted a broad universe of potential financial and strategic buyers to purchase the Red Lobster business. In addition, a significant number of real estate buyers were also contacted to facilitate attractive sale-leaseback financing for the purchase of the Red Lobster business.

In reaching the conclusion that this agreement is in the best interest of all Darden's shareholders, the Darden Board considered, among other things, that:

- The all cash consideration provides Darden with immediate and certain value to reduce debt and support its capital return initiatives, including maintaining the Company's dividend, which Darden shareholders have stated is a priority. In the past five fiscal years, Darden has returned nearly \$2 billion to shareholders through share repurchases and dividends;
- The purchase price is approximately 9x Red Lobster's earnings before interest, taxes, depreciation and amortization (EBITDA) for the twelve months ending April 27, 2014;
- The transaction maximizes the value of the Red Lobster business, while eliminating the risks and uncertainties to Darden and Darden shareholders relating to Red Lobster's turnaround or to separately monetizing the Red Lobster real estate assets;
- The Company explored numerous separation alternatives for Red Lobster and the value potential of each, including (i) a spin-off of the Red Lobster business, (ii) a sale of the Red Lobster business, (iii) a spin-off of the Red Lobster operating company and a separate sale of its real estate, (iv) retaining the Red Lobster operating company and separating its real estate, and (v) retaining both the Red Lobster operating company and its real estate. The Board concluded that the agreement with Golden Gate Capital is the superior value creating alternative;

- The agreement is structured to minimize closing risk. Golden Gate Capital has obtained committed debt financing, has fully executed a separate sale-leaseback agreement, and its offer is subject to customary closing conditions and regulatory approvals; and
- The separation of Red Lobster from Darden will better enable the management teams of each company to focus their exclusive attention on their distinct value creation opportunities.

Chuck Ledsinger, Lead Director of Darden's Board of Directors, said, "Today's announcement is the culmination of a highly competitive process designed to maximize the value of the Red Lobster business and better position Darden for success. The structure of the agreement enables us to capture the value of Red Lobster and establish a market validated valuation of its real estate, while also enabling us to avoid the risks associated with continuing to operate the business in the current challenging environment. As we move forward, we remain committed to building on Darden's leadership and will continue to focus on optimizing all of the Company's assets, including its real estate."

Clarence Otis, Darden's Chairman and CEO, said, "Over the past months, we have had extensive conversations with our shareholders about Darden and the Company's strategic direction. By enabling us to bolster the Company's financial foundation and increase our focus on the Olive Garden brand renaissance program, we believe this agreement addresses key issues that our shareholders have raised, including the need to preserve the Company's dividend and regain momentum at Olive Garden. At the same time, it provides Red Lobster and its dedicated employees and leadership team with a partner who has a strong track record in the industry and is as equally dedicated to Red Lobster's success. Our Board and management team are highly focused on enhancing shareholder value, and we believe this transaction is consistent with the efforts underway to deliver on this responsibility."

"Red Lobster is an exceptionally strong brand with an unparalleled market position in seafood casual dining," said Josh Olshansky, Managing Director at Golden Gate Capital. "Red Lobster is exactly the type of company in which we seek to invest given its great brand profile and strong management team. We see significant opportunities for future growth by partnering with Kim Lopdrup and the management team to support the long-term success of Red Lobster."

Operating Support and Direct Operating Costs

As part of its strategic action plan, Darden has significantly reduced operating support costs, which reflects previously announced savings of at least \$60 million annually beginning in fiscal year 2015 and additional savings identified during its work to separate Red Lobster. As a result, despite meaningfully lower total revenue following the sale of Red Lobster, Darden does not anticipate an increase in its general and administrative (G&A) expenses as a percentage of sales. G&A expenses are expected to be 5.0% of sales in fiscal 2014 and to remain at that level in fiscal 2015, excluding costs associated with implementation of the Company's strategic action plan and lobster aquaculture research and development project.

In addition, as previously announced, the Company has retained Alvarez & Marsal North America to assist with Darden's operating support cost optimization efforts. Based on work to date, Darden is confident that it can achieve a significant reduction in annualized G&A expenses as a percentage of sales within 12 to 18 months of the closing of the Red Lobster sale (excluding the lobster aquaculture research and development costs).

Darden's work with Alvarez & Marsal is ongoing and is also focused on identifying opportunities for direct operating cost reductions and revenue enhancements.

Closing

Darden expects the sale of the Red Lobster business, which was unanimously approved by Darden's Board of Directors, to close in the first fiscal quarter of 2015.

The deal is subject to customary closing conditions and regulatory approvals and is not subject to a shareholder approval condition or a financing condition. Golden Gate Capital has obtained committed debt financing from Deutsche Bank AG, Jefferies and GE Capital, and has fully executed a separate \$1.5 billion sale-leaseback agreement with American Realty Capital Properties, Inc., the proceeds of which will be used to support the financing of Golden Gate Capital's purchase of Red Lobster.

Special Meeting

Although the closing of this transaction is not contingent on the results of a Special Meeting, the Company intends to file a preliminary proxy statement later this month with the Securities and Exchange Commission with respect to the requested Special Meeting of Shareholders and to convene a Special Meeting as promptly as practicable.

Advisors

Goldman, Sachs & Co. is serving as Darden's exclusive financial advisor on the sale of Red Lobster and also as financial advisor to Darden's Board of Directors. Latham & Watkins is serving as its legal counsel to Darden on the transaction. Morgan Stanley is serving as financial advisor working exclusively at the direction of Darden's Board of Directors, and Wachtell, Lipton, Rosen & Katz is serving as legal advisor to Darden's Board of Directors.

Deutsche Bank Securities Inc. and Jefferies LLC are serving as financial advisors to Golden Gate Capital in connection with the transaction. Deutsche Bank Securities Inc., GE Capital, and Jefferies Finance LLC are providing debt commitments for the acquisition.

Slide Presentation

Darden has published a slide presentation in connection with today's announcement. A copy of the slides can be accessed at www.darden.com and clicking on the "Investors" tab.

About Golden Gate Capital

Golden Gate Capital is a San Francisco-based private equity investment firm with over \$12 billion of capital under management. The principals of Golden Gate have a long and successful history of investing across a wide range of industries and transaction types, including going-privates, corporate divestitures, and recapitalizations, as well as debt and public equity investments. Golden Gate is one of the most active investors in multi-unit consumer companies with leading brands. Representative investments include California Pizza Kitchen, Payless ShoeSource, Eddie Bauer, Express, Zales, J.Jill and Pacific Sunwear. For additional information, visit www.goldengatecap.com.

About Darden

Darden Restaurants, Inc., (NYSE: DRI), the world's largest full-service restaurant company, owns and operates more than 2,100 restaurants that generate over \$8.5 billion in annual sales. Headquartered in Orlando, Fla., and employing more than 200,000 people, Darden is recognized for a culture that rewards caring for and responding to people. In 2014, Darden was named to the FORTUNE "100 Best Companies to Work For" list for the fourth year in a row. Our restaurant brands – Red Lobster, Olive Garden, LongHorn Steakhouse, Bahama Breeze, Seasons 52, The Capital Grille, Eddie V's and Yard House – reflect the rich diversity of those who dine with us. Our brands are built on deep insights into what our guests want. For more information, please visit www.darden.com.

Information About Forward-Looking Statements

Forward-looking statements in this communication regarding our expected earnings per share and U.S. same-restaurant sales for the fiscal year, new restaurant growth and all other statements that are not historical facts, including without limitation statements concerning our future economic performance, plans or objectives and expectations regarding the sale of Red Lobster, benefits to Darden and its shareholders from such sale and related matters, are made under the Safe Harbor provisions of the Private Securities Litigation Reform Act of 1995. Any forward-looking statements speak only as of the date on which such statements are made, and we undertake no obligation to update such statements to reflect events or circumstances arising after such date except as required by law. We wish to caution investors not to place undue reliance on any such forward-looking statements. By their nature, forward-looking statements involve risks and uncertainties that could cause actual results to materially differ from those anticipated in the statements. The most significant of these uncertainties are described in Darden's Form 10-K, Form 10-Q and Form 8-K reports (including all amendments to those reports). These risks and uncertainties include the ability to achieve Darden's strategic plan to enhance shareholder value including realizing the expected benefits from the sale of Red Lobster, the occurrence of any event, change or other circumstances that could give rise to the termination of the agreement to sell Red Lobster, the outcome of any legal proceeding that may be instituted against Darden relating to the Red Lobster transaction or otherwise, the failure of the Red Lobster transaction to close for any reason including non-fulfillment of any conditions to close, the timing of the completion of the transaction, actions of activist investors and the cost and disruption of responding to those actions, food safety and food-borne illness concerns, litigation, unfavorable publicity, risks relating to public policy changes and federal, state and local regulation of our business including health care reform, labor and insurance costs, technology failures, failure to execute a business continuity plan following a disaster, health concerns including virus outbreaks, intense competition, failure to drive sales growth, failure to successfully integrate the Yard House business and the additional indebtedness incurred to finance the Yard House acquisition, our plans to expand our smaller brands Bahama Breeze, Seasons 52 and Eddie V's, a lack of suitable new restaurant locations, higher-than-anticipated costs to open, close, relocate or remodel restaurants, a failure to execute innovative marketing tactics and increased advertising and marketing costs, a failure to develop and recruit effective leaders, a failure to address cost pressures, shortages or interruptions in the delivery of food and other products, adverse weather conditions and natural disasters, volatility in the market value of derivatives, economic factors specific to the restaurant industry and general macroeconomic factors including unemployment and interest rates, disruptions in the financial markets, risks of doing business with franchisees and vendors in foreign markets, failure to protect our service marks or other intellectual property, impairment in the carrying value of our goodwill or other intangible assets, a failure of our internal controls over financial reporting, or changes in accounting standards, an inability or failure to manage the accelerated impact of social media and other factors and uncertainties discussed from time to time in reports filed by Darden with the Securities and Exchange Commission.

Important Additional Information

The Company, its directors and certain of its executive officers are participants in the solicitation of proxies from stockholders in connection with the upcoming special meeting of the Company's stockholders. In connection with the special meeting, the Company intends to file a preliminary proxy statement and proxy card with the U.S. Securities and Exchange Commission (the "SEC") in connection with any such solicitation of proxies from the Company's stockholders. Information regarding the names and interests of such participants is set forth in the Company's revocation solicitation statement, filed with the SEC on April 1, 2014 and will also be included in the proxy statement concerning the special meeting. These documents are available free of charge at the SEC's website at www.sec.gov.

The Company will be mailing a definitive proxy statement and proxy card to each stockholder entitled to vote at the special meeting. WE URGE INVESTORS TO READ ANY PROXY STATEMENT (INCLUDING ANY SUPPLEMENTS THERETO) AND ANY OTHER RELEVANT DOCUMENTS THAT THE COMPANY MAY FILE WITH THE SEC CAREFULLY AND IN THEIR ENTIRETY WHEN THEY BECOME AVAILABLE BECAUSE THEY WILL CONTAIN IMPORTANT INFORMATION. Stockholders will be able to obtain, free of charge, copies of any proxy statement and any other documents filed by the Company with the SEC in connection with the possible proxy solicitation at the SEC's website at www.sec.gov. In addition, copies will also be available at no charge at the Investors section of the Company's website at <http://investor.darden.com/investors/investor-relations/default.aspx>.

SOURCE Darden Restaurants, Inc.: Financial

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